

1. Legal - Copyright material: AI Generated artwork/ Content

- a. UK “Copyright, Designs and Patents” act 1988
- b. The author is the person that made the necessary arrangements for the artworks creation: Can be interpreted as:
 - i. Developer of the model
 - ii. Person Prompting the model
- c. Essentially a blank spot in legislature open for interpretation
- d. Human made pictures content: Need to use own created, copyright-free or buy rights from copyright owners.
- e. Rapidly evolving legal landscape, with many future legislatures yet to come: legal space needs to be closely monitored to ensure compliance.

2. Ethical - Ethical consideration of Generating Content

- a. Inherently due to the ethical implications off generative models (use of stolen content/ artwork without the consent of artists/ content creators), any materials generated by us for the purpose of our course will have the same implications. (Any more “ethical” ethical models we can use?).
- b. To train the users on detecting deep fakes, real likenesses as well as the deepfaked versions have to be used (consent of the deepfaked person has to be present)

3. Environmental/Sustainability

- a. To create the course, AI-generated content needs to be used so it can be compared and tested against human content, to avoid copyright considerations that will most likely have to be generated by the OneGuard team, leading to environmental concerns linked with the sustainability and environmental impact of AI models (Use more sustainable models?) (i dont know if we have the luxury of using more sustainable models)

4. Legal - Data Processing

- a. Any data that is collected by us has to be processed and stored in accordance with the UK/Multinational data processing legislature (GDPR for UK).
 - i. Need a DPA (data processing agreement), a legally binding contract between us (OneGuard) and the company containing:
 - 1. What data we are processing and how long for
 - 2. Nature of data processing (AI detection training)
 - 3. Types of data (employee names, ip addresses, test scores, emails)
 - 4. Categories of data subjects (client’s employees)
 - 5. A strict clause stating we will only process the data based on the client’s documented instructions
 - 6. If we want to use the employee data to train some model we need client’s consent

- ii. Managing sub-processors (e.g. AWS)
 - 1. We won't be building the tech stack from scratch, so any third party software we use will need to be a part of the agreement (need authorisation from client to use third party software like AWS, Stripe, etc..)
 - 2. Leaves us responsible for third party actions (if AWS has a data breach we will be responsible on behalf of the client)
- iii. Technical and Organisational measures
 - 1. Encryption of data
 - 2. Strict access controls (devs shouldn't be able to see client employee data unless absolutely necessary)
 - 3. Confidentiality agreement, OneGuard staff and contractors must sign a strict agreement before working on anything
- iv. Assisting data controller (building tools for client to handle data)
 - 1. Providing access to data (e.g. "export user data" button)
 - 2. Notifying client if there is a data breach of sorts (usually within 48 - 72 hrs)
- v. Data return/deletion, when contract ends GDPR restricts "data hoarding"
 - 1. At end of contract wipe data or return it to client
 - 2. Could implement an automated data wiping procedure to delete all the user data from the client 30-60 days after the contract ends

5. Legal/ Ethical - Accessibility

- a. We have the responsibility to "ensure digital services are accessible to disabled individuals"
- b. Measures should include closed captioning on videos and auto description to avoid exposure to discrimination claims under equality act 2020.

6. Legal - Accuracy and sufficiency

- a. Training that misinforms can expose us to liability -> Research and science based approach is critical!
- b. Could be opening ourselves to risk if when an employee that did our course falls for an AI scam?
 - i. No as long as we provide:
 - 1. Reasonable, good-faithed program
 - 2. Content is accurate and not misleading
 - 3. There is no Guarantee of fraud prevention
 - a. TO shield from liability this has to be highlighted
- c. IMPORTANT: IF training material is considered "grossly outdated" this can open us up to liability, important as AI is very rapidly evolving field.

7. Ethical - "AI Adoption" marketing

- a. Marketing our course as enabling AI adoptions has ethical considerations of AI in the workplace (eg. redundancy of the workforce ect.) (idk about this point, they're not adopting AI they are using a training tool to look out for it)

8. Legal - Multinational

- a. Multinational law differs from UK law have to analyze law for any outside the UK customers

9. Ethical - customers

- a. Providing enterprises with poor ethical/ environmental records shift that burden to us as well to a certain extent.

10. Legal - AI Certified marketing

- a. Marketing employees that completed our course could open us up to risk as per point 6.